

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Stephen Abrams-Downey	Team: Squad #01	CCRB Case #: 201406577	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Thursday, 06/26/2014 4:27 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 12/26/2015	Precinct: 60
Date/Time CV Reported Thu, 06/26/2014 4:26 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 07/01/2014 2:17 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Robertito Navarro	09436	943605	PSA 1
2. POM Jeffrey Gryz	12498	941855	PSA 1

Officer(s)	Allegation	Investigator Recommendation
A . POM Robertito Navarro	Abuse: PO Robertito Navarro entered § 87(2)(b) Brooklyn.	A . Substantiated
B . POM Jeffrey Gryz	Abuse: PO Jeffrey Gryz entered § 87(2)(b) Brooklyn.	B . Substantiated
C . POM Robertito Navarro	Force: PO Robertito Navarro used physical force against § 87(2)(b)	C . Unsubstantiated
D . POM Jeffrey Gryz	Force: PO Jeffrey Gryz used physical force against § 87(2)(b)	D . Unsubstantiated
E . POM Robertito Navarro	Force: PO Robertito Navarro used a chokehold against § 87(2)(b)	E . Unfounded

Case Summary

On June 26, 2014, § 87(2)(b) filed this complaint with IAB over the phone. On July 1, 2014, the case was referred to the CCRB via IAB Log No. 14-22276. On June 26, 2014, § 87(2)(b)'s boyfriend, § 87(2)(b) was arrested by PO Robertito Navarro and PO Jeffrey Gryz, both of PSA 1, inside § 87(2)(b), in Brooklyn. The following allegations resulted:

- **Allegation A: Abuse of Authority – PO Robertito Navarro entered § 87(2)(b) Brooklyn.**
- **Allegation B: Abuse of Authority – PO Jeffrey Gryz entered § 87(2)(b) Brooklyn.**
§ 87(2)(g)
Therefore, it is recommended that **Allegations A and B** be closed as **substantiated**.
- **Allegation C: Force – PO Robertito Navarro used physical force against § 87(2)(b)**
§ 87(2)(g)
Therefore, it is recommended that **Allegation C** be closed as **unsubstantiated**.
- **Allegation D: Force – PO Jeffrey Gryz used physical force against § 87(2)(b)**
§ 87(2)(g)
Therefore, it is recommended that **Allegation D** be closed as **unsubstantiated**.
- **Allegation E: Force – PO Robertito Navarro used a chokehold against § 87(2)(b)**
§ 87(2)(g)
Therefore, it is recommended that **Allegation E** be closed as **unfounded**.

This case was not eligible for mediation because § 87(2)(b) was arrested during the incident.
§ 87(2)(g)

Results of Investigation

Civilian Statement(s)

Complainant/ Victim: § 87(2)(b)

- § 87(2)(b) § 87(2)(b) old at the time of the incident, is a § 87(2)(b) Hispanic female with brown hair and brown eyes. § 87(2)(b)

CCRB Testimony

§ 87(2)(b) was interviewed at the CCRB on July 21, 2014 (Encl. 7B-D). § 87(2)(b) also provided phone statements on July 1, 2014 (Encl. 7A) and August 20, 2014 (Encl. 7Y). At approximately 4:27 p.m. on June 26, 2014, § 87(2)(b) was inside her apartment at § 87(2)(b), in Brooklyn, with her husband, § 87(2)(b) and her § 87(2)(b)-old daughter, § 87(2)(b). Two police officers, identified by the investigation as PO Robertito Navarro and PO Jeffrey Gryz, knocked on the front door with § 87(2)(b) § 87(2)(b)-old daughter, § 87(2)(b) and § 87(2)(b).

§ 87(2)(b)'s uncle, § 87(2)(b) § 87(2)(b) had recently moved out of the apartment after having a dispute with § 87(2)(b). The officers told § 87(2)(b) that they had come to her house to retrieve § 87(2)(b)'s belongings. § 87(2)(b) and § 87(2)(b) both told the officers that § 87(2)(b) had taken all her possessions from the apartment.

PO Navarro ordered § 87(2)(b) to bring any possessions that § 87(2)(b) had left behind, including her birth certificate and insurance card. § 87(2)(b) then told § 87(2)(b) that she could enter the apartment, which she did. The officers and § 87(2)(b) remained in the hallway outside the apartment and § 87(2)(b) closed the front door. § 87(2)(b) walked to her bedroom and saw that her possessions were not there. § 87(2)(b) then told her daughter to leave the house and § 87(2)(b) exited the apartment. § 87(2)(b) told the officers that she still needed her insurance card and birth certificate and PO Navarro again told § 87(2)(b) to obtain these documents.

§ 87(2)(b) was in the hallway, four to five feet in front of § 87(2)(b). The two officers stood to her side, but slightly closer to the door. § 87(2)(b) was further back in the hallway. § 87(2)(b) and § 87(2)(b) held a plastic bag containing three of § 87(2)(b)'s shirts and two pairs of underwear. § 87(2)(b) had her hand on the top of the bag, while § 87(2)(b) held the bottom. Together, they threw this bag towards § 87(2)(b). This was not a forceful throw, but a soft toss. The bag landed at § 87(2)(b)'s feet and did not make contact with either officer. § 87(2)(b) attempted to shut her front door. PO Navarro told § 87(2)(b) that the bag could have hit him and propped the door open with his foot. § 87(2)(b) and § 87(2)(b) told PO Navarro to leave, but he pushed the door open and entered the apartment.

Once inside, he punched § 87(2)(b) in the stomach three times. § 87(2)(b) attempted to stand in between PO Navarro and § 87(2)(b). PO Gryz also entered the apartment at this time and the door to the apartment shut behind him. The officers then pushed § 87(2)(b) to the back of the apartment, towards § 87(2)(b)'s bedroom, and pressed him against the bed, with his back facing the officers. PO Navarro and PO Gryz both punched § 87(2)(b) in the lower stomach two or three times while pushing § 87(2)(b). § 87(2)(b) did not resist or attempt to move his hands away from the officers.

§ 87(2)(b) asked why § 87(2)(b) was being arrested and PO Gryz pushed her on the chest. The officers then took § 87(2)(b) out of the apartment and placed him in a police car downstairs. § 87(2)(b) gathered her belongings and went outside. From the police car, § 87(2)(b) told § 87(2)(b) that was having difficulty breathing. The officers drove § 87(2)(b) to the PSA 1 stationhouse. § 87(2)(b) went to § 87(2)(b) to receive medical care the following day, after he had been released from custody. § 87(2)(b)

Complainant/ Victim: § 87(2)(b)

- § 87(2)(b) § 87(2)(b) old at the time of the incident, is a § 87(2)(b) Hispanic male with brown hair and brown eyes. § 87(2)(b)

CCRB Testimony

§ 87(2)(b) was interviewed at the CCRB on July 21, 2014 (Encl. 8A-C). He also provided a phone statement on August 19, 2014 (Encl. 8N). § 87(2)(g) § 87(2)(b) was

with § 87(2)(b) inside § 87(2)(b), in Brooklyn, when PO Navarro, PO Gryz, § 87(2)(b) and § 87(2)(b) arrived. After speaking with the officers, § 87(2)(b) and § 87(2)(b) allowed § 87(2)(b) to enter the apartment to retrieve her property. When § 87(2)(b) left the apartment, § 87(2)(b) attempted to close the front door, but PO Gryz propped it open with his foot. § 87(2)(b) retrieved a small plastic bag containing § 87(2)(b)'s clothing and threw it in § 87(2)(b) direction. The bag did not touch either officer. PO Navarro then pushed the door open with his foot, entered the apartment, and punched § 87(2)(b) in the stomach one time.

§ 87(2)(b) walked towards the living room and PO Navarro followed him. PO Gryz also entered the apartment and attempted to pull his partner back by grabbing his shoulder. PO Navarro spoke to § 87(2)(b) and again punched him in the stomach once. § 87(2)(b) then jumped in between PO Navarro and § 87(2)(b). PO Navarro told § 87(2)(b) to place his hands behind his back and § 87(2)(b) asked why he was being arrested. PO Navarro did not respond but reached for § 87(2)(b)'s arms and pulled them behind his body. PO Navarro and PO Gryz led § 87(2)(b) inside § 87(2)(b)'s bedroom and pushed him up against the bed. Once he was down, the officers handcuffed § 87(2)(b) and led him out of the apartment, hitting him against several walls in the hallway and elevator. § 87(2)(b) did not see if either officer interacted with § 87(2)(b) during the arrest.

Once outside, § 87(2)(b) told the officers that they had no reason to arrest him. The officers pushed § 87(2)(b) against the police car and PO Navarro held and squeezed one open hand against the front part of § 87(2)(b)'s neck for approximately one minute. § 87(2)(b) gagged and PO Navarro removed his hand. § 87(2)(b) was unable to speak while the officer's hand was on his neck. The officers then placed § 87(2)(b) inside the vehicle, which was very hot. The officers did not respond when he asked them to open a window.

PO Navarro and PO Gryz drove § 87(2)(b) to the stationhouse. § 87(2)(b) was charged with § 87(2)(b). However, § 87(2)(b) had not had any interactions with her. § 87(2)(b) went before a judge § 87(2)(b) and an order of protection was issued against him on § 87(2)(b)'s behalf. After he was released on § 87(2)(b), § 87(2)(b) went to § 87(2)(b) and § 87(2)(b). He stated that he had received these injuries when the officers pushed him to the ground.

Witness: § 87(2)(b)

- § 87(2)(b) § 87(2)(b) old at the time of the incident, is a § 87(2)(b) Hispanic male with grey hair and brown eyes.

CCRB Testimony

§ 87(2)(b) was interviewed at the CCRB on August 26, 2014 (Encl. 9A-C). On June 24, 2014, § 87(2)(b)'s niece, § 87(2)(b) was told to leave her house by her mother, § 87(2)(b) and stepfather, § 87(2)(b). § 87(2)(b) had been living with her grandmother since that time. On June 26, 2014, § 87(2)(b) and § 87(2)(b) went to § 87(2)(b)'s apartment at § 87(2)(b), in Brooklyn, to recover § 87(2)(b)'s belongings including her birth certificate and social security card. Before arriving at the apartment, § 87(2)(b) and § 87(2)(b) had gone to a police precinct to report the situation. Two police officers, PO Robertito Navarro and PO Jeffrey Gryz, met them at the apartment building.

The officers told § 87(2)(b) and § 87(2)(b) to stand behind them while they knocked on the door and identified themselves as officers to the individuals inside the apartment. § 87(2)(b) and § 87(2)(b) answered the door and the officers asked if § 87(2)(b) could enter the apartment to retrieve her property. § 87(2)(b) and § 87(2)(b) were immediately combative and refused to look for § 87(2)(b)'s documents. After speaking to the officers for several minutes, § 87(2)(b) allowed § 87(2)(b) to enter the apartment. However, when she went inside, § 87(2)(b) and § 87(2)(b) threatened her verbally and pushed § 87(2)(b) with their shoulders repeatedly. § 87(2)(b) left the apartment because she felt intimidated by her parents' behavior.

When § 87(2)(b) left the apartment, the officers told her to stand behind them and again told § 87(2)(b) and § 87(2)(b) to provide her documentation. § 87(2)(b) then walked into a back room inside the apartment and retrieved multiple items of § 87(2)(b)'s clothing, including t-shirts and underwear. § 87(2)(b) said, "Here's your fucking shit" and threw the clothing in § 87(2)(b)'s direction. § 87(2)(b) was standing approximately one to two feet away from the officers. The clothing hit PO Navarro in the face and then fell to the ground near § 87(2)(b). § 87(2)(b) threw the clothes with force, but the throw did not cause PO Navarro to step back. § 87(2)(b) did not make any physical movements at this time, but told § 87(2)(b) to "take your shit."

The officers then told § 87(2)(b) that he was under arrest because he had assaulted them by throwing the clothing. § 87(2)(b) ran towards the back rooms, but the front door to the apartment remained open. The officers took out their handcuffs, entered the apartment, and caught up to § 87(2)(b) after approximately ten feet. Both officers grabbed § 87(2)(b) by his arms and pushed him to the ground. § 87(2)(b) moved his arms to prevent the officers from handcuffing him. He repeatedly yelled, "fuck you" and told the officers to get off him. § 87(2)(b) also told the officers to get off § 87(2)(b). Neither officer made any physical contact with § 87(2)(b). The officers handcuffed § 87(2)(b) after one to two minutes and led him out of apartment. Neither officer punched § 87(2)(b) during the incident.

In the hallway, § 87(2)(b) walked past § 87(2)(b) said that he would "kill her," and attempted to kick her. The officers pushed § 87(2)(b) away from § 87(2)(b) but they did not hit him against the floor or wall. The officers then led § 87(2)(b) inside the elevator and took him downstairs. § 87(2)(b) and § 87(2)(b) then walked downstairs. When they went outside, they saw § 87(2)(b) standing stiff near the car door, refusing to go inside. The officers repeatedly told him to enter the vehicle and he ultimately complied. The officers did not make any physical contact with § 87(2)(b) at this time. § 87(2)(b) did not see either officer make contact with § 87(2)(b)'s neck during the incident.

Witness: § 87(2)(b)

- § 87(2)(b) § 87(2)(b) old at the time of the incident, is a § 87(2)(b) Hispanic female.
§ 87(2)(b)

CCRB Testimony

§ 87(2)(b) was interviewed at the CCRB on August 26, 2014 (Encl. 10A-B). § 87(2)(g)

On June 26, 2014, § 87(2)(b) and her uncle, § 87(2)(b) went to the apartment of her mother, § 87(2)(b) and her step-father, § 87(2)(b) at § 87(2)(b), in Brooklyn. § 87(2)(b) had left the apartment earlier that week after a dispute with § 87(2)(b) and § 87(2)(b).

§ 87(2)(b) and had returned to retrieve her belongings. § 87(2)(b) and § 87(2)(b) had visited a precinct earlier that day and were accompanied by two police officers, PO Navarro and PO Gryz.

§ 87(2)(b) and § 87(2)(b) were upset when the officers first told them to allow § 87(2)(b) inside. § 87(2)(b) threatened to kill § 87(2)(b) and the officers. The officers remained outside, in the hallway, when § 87(2)(b) allowed § 87(2)(b) to enter, but held the front door open. Once inside, § 87(2)(b) and § 87(2)(b) stood on § 87(2)(b)'s two sides. § 87(2)(b) repeatedly told § 87(2)(b) that this situation was her fault. Both § 87(2)(b) and § 87(2)(b) pushed § 87(2)(b) on the shoulders. § 87(2)(b) exited the apartment and did not recover her belongings.

Once § 87(2)(b) exited the apartment, § 87(2)(b) grabbed multiple items of her clothing and threw them in § 87(2)(b)'s direction. § 87(2)(b) was standing approximately one foot away from § 87(2)(b) when he threw the clothing. As he was throwing the clothing, § 87(2)(b) told § 87(2)(b) to take her belongings. § 87(2)(b) was standing in front of the officers at the time, but the clothing went over her head and hit PO Navarro and PO Gryz in the face. § 87(2)(b) was silent and did not make any movements when § 87(2)(b) threw the bag.

The officers then told § 87(2)(b) that they would arrest him because he had assaulted them by throwing the clothing. § 87(2)(b) ran towards the back rooms and both officers entered the apartment simultaneously. The front door remained open during this time. § 87(2)(b) lost sight of § 87(2)(b) and the officers because the front hallway of the apartment curved and the back rooms are not visible from outside. Soon after, the officers led § 87(2)(b) out of the apartment in handcuffs. As he walked past § 87(2)(b), § 87(2)(b) attempted to run in her direction and said that he would “fuck her up.” The officers, who were standing on § 87(2)(b)'s sides, pulled him away from § 87(2)(b). § 87(2)(b) moved him inside the elevator, and went downstairs. § 87(2)(b) did not see either officer make physical contact with § 87(2)(b). However, she lost sight of § 87(2)(b) when she was inside the apartment.

§ 87(2)(b) and § 87(2)(b) then walked downstairs. When they got outside, § 87(2)(b) and § 87(2)(b) saw § 87(2)(b) threatening to fight the officers. PO Gryz put § 87(2)(b) inside the police car by pushing on the top of his head with one hand. § 87(2)(b) got inside the car and the officers drove him to the precinct. § 87(2)(b) did not see either officer place his hand on § 87(2)(b)'s neck.

NYPD Statement(s):

Subject Officer: PO JEFFREY GRYZ

- PO Gryz, § 87(2)(b) old at the time of the incident, is a § 87(2)(b) white male with brown hair and green eyes.

Memo Book

According to his memo book, PO Gryz received a stationhouse assignment for § 87(2)(b) in regards to a family dispute at 4:03 p.m. At 4:27 p.m. PO Gryz placed § 87(2)(b) under arrest. PO transported § 87(2)(b) to the PSA 1 stationhouse at 4:28 p.m. They arrived at the stationhouse at 4:35 p.m. (Encl. 11A-C).

Arrest Report

§ 87(2)(a) 160.50

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

CCRB Testimony

PO Gryz was interviewed at the CCRB on October 16, 2014 (Encl. 11G-H). At 4:03 p.m. on June 26, 2014, PO Gryz was in the PSA 1 stationhouse with his partner, PO Navarro. A female, § 87(2)(b) came to the stationhouse with her uncle, § 87(2)(b) and told PO Gryz that she had moved out of her house after having a dispute with her mother, § 87(2)(b) § 87(2)(b) asked the officers to accompany her to her mother's apartment so she could retrieve her belongings.

At approximately 4:27 p.m., PO Gryz, PO Navarro, § 87(2)(b) and § 87(2)(b) arrived at § 87(2)(b) apartment at § 87(2)(b), in Brooklyn. The two officers stood in front of the doorway while § 87(2)(b) and § 87(2)(b) were behind the officers. The officers knocked on the door and § 87(2)(b) and her husband, § 87(2)(b) opened the door. § 87(2)(b) told the officers that she did not want to return § 87(2)(b)'s property. § 87(2)(b) and § 87(2)(b) were both speaking with raised voices, but they did not make any physical movements.

After speaking for several minutes, § 87(2)(b) allowed § 87(2)(b) to enter the apartment and retrieve her property. The officers remained in the hallway and PO Gryz could not see § 87(2)(b) while she was inside the apartment because she had turned down a corridor to the right. However, PO Gryz heard § 87(2)(b) threaten § 87(2)(b) calling her a "bitch" and saying that he would kill her if she came back to the apartment. § 87(2)(b) ran out of the apartment after approximately ten seconds. Once in the hallway, § 87(2)(b) stood behind the officers. § 87(2)(b) followed § 87(2)(b) towards the door of the apartment and threw an armful of clothing at the officers. § 87(2)(b) was standing approximately two feet away from PO Gryz and PO Navarro when he threw the clothes. He pushed the clothing forward from his chest and the clothes hit the officers in the middle of their bodies.

§ 87(2)(b) ran inside his apartment after he threw the clothing, but the front door remained open. PO Gryz and PO Navarro followed § 87(2)(b) inside the apartment and told him to put his hands behind his back and that he was under arrest. § 87(2)(b) went towards the bedroom, and the officers grabbed his arms. PO Gryz held his right arm while PO Navarro grabbed his left. § 87(2)(b) straightened his arms to prevent the officers from handcuffing him. He also tried to push his body away from the officers. PO Gryz and PO Navarro overcame this resistance by pulling § 87(2)(b)'s arms behind his back and handcuffed him after approximately one minute. Neither PO Gryz nor PO Navarro punched § 87(2)(b) when arresting him.

The officers then transported § 87(2)(b) out of the apartment, to their vehicle. § 87(2)(b) § 87(2)(b) dragged his feet to prevent the officers from taking him outside. PO Gryz and PO Navarro pulled him outside by his arms, but did not push him against the walls of the apartment. Neither officer pushed or made any physical contact with § 87(2)(b) while transporting § 87(2)(b).

§ 87(2)(b) outside. Once outside, § 87(2)(b) made his body stiff so the officers could not place him inside the vehicle. The officers pushed § 87(2)(b) inside the vehicle and transported him to the PSA 1 stationhouse. PO Navarro did not place his hand on the front of § 87(2)(b)'s neck while putting him into the vehicle.

Subject Officer: PO ROBERTITO NAVARRO

- PO Navarro, § 87(2)(b) old at the time of the incident, is a § 87(2)(b) Hispanic male with grey hair and brown eyes.

Memo Book

At 4:03 p.m., PO Navarro received an assignment at 3224 § 87(2)(b). He placed one individual under arrest at 4:45 p.m. and transported him to the stationhouse at 4:55 p.m. PO Navarro went to § 87(2)(b) (Encl. 12A-B).

CCRB Testimony

PO Robertito Navarro was interviewed at the CCRB on November 26, 2014 (Encl. 12C-D). § 87(2)(g)

At 4:03 p.m. on June 26, 2014, PO Navarro was inside the PSA-1 stationhouse with PO Gryz. § 87(2)(b) and § 87(2)(b) arrived at the stationhouse and asked the officers to accompany them to § 87(2)(b) to retrieve her belongings. PO Navarro and PO Gryz spoke to § 87(2)(b) and § 87(2)(b) when they arrived at the apartment. § 87(2)(b) was upset as he yelled and cursed at the officers. After speaking for approximately fifteen minutes, § 87(2)(b) allowed § 87(2)(b) to enter the apartment to recover her clothing. The door to the apartment remained open, but § 87(2)(b) turned a corner and PO Navarro could not see her once she was inside. However, PO Navarro heard § 87(2)(b) curse at her loudly and threaten her. § 87(2)(b) left the apartment after approximately one minute.

When § 87(2)(b) exited the apartment, she ran behind the officers, who were directly in front of the front door, and turned a corner in the hallway. § 87(2)(b) followed immediately behind her, holding a large armful of clothing. § 87(2)(b) then walked up to the officers and forcefully threw the clothing into their faces. After he threw this clothing, § 87(2)(b) ran back inside his apartment. PO Navarro and PO Gryz both followed him and entered the apartment simultaneously. PO Navarro asked § 87(2)(b) for his identification. When he did not provide this documentation, the officers told him that he would be placed under arrest and ordered him to put his hands behind his back. § 87(2)(b) refused this order and moved further to the back of the apartment. When the officers pursued him, § 87(2)(b) resisted arrest by flailing his arms and moving his upper body to elude the officers. PO Navarro and PO Gryz overcame this resistance by grabbing § 87(2)(b)'s arms and pulling them behind his back. Neither PO Navarro nor PO Gryz punched § 87(2)(b) at any point during this struggle.

PO Navarro did not recall what § 87(2)(b) did during the arrest. He did not see PO Gryz push her at any point in the struggle. When § 87(2)(b) had been handcuffed, PO Navarro and PO Gryz led him into the elevator and placed him in their car. Neither PO Navarro nor PO Gryz pushed § 87(2)(b) into any walls or doors while walking him outside. § 87(2)(b) initially resisted going inside the police car by making his body stiff. However, he stopped resisting after PO Navarro and PO Gryz told him to enter the vehicle multiple times. They did not have to use any force at this time. PO Navarro did not place his hand on § 87(2)(b)'s throat and squeeze at any point. § 87(2)(b) did not complain of any injuries and he did not tell PO

Navarro that he had been unable to breathe. PO Navarro and PO Gryz then transported § 87(2)(b) to the stationhouse and processed his arrest.

Medical Records

§ 87(2)(a) PHL § 18(6)

§ 87(2)(b)

Summons/Arrest for Incident and Disposition

- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings

- As of November 12, 2014, and beyond the 90 day window to do so, § 87(2)(b) and § 87(2)(b) have not filed notices of claim regarding this incident (Encl. 14A).

Civilian(s) CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) or § 87(2)(b) (Encl. 3A-B).

Subject Officer(s) CCRB History

- PO Robertito Navarro has been a member of the service for seven years and there are no substantiated CCRB allegations against him (Encl. 2B).
- PO Jeffrey Gryz has been a member of the service for eight years and this is the first CCRB allegation against him (Encl. 2A).

Conclusion

Identification of Subject Officer(s)

§ 87(2)(b) described the officer who allegedly punched and used a chokehold against § 87(2)(b) as a male with salt and pepper hair. § 87(2)(b) and § 87(2)(b) both read this officer's name as PO Navarro from his nameplate. PO Robertito Navarro is a Hispanic male with grey hair § 87(2)(g).

Neither § 87(2)(b) nor § 87(2)(b) described the second subject officer. However, § 87(2)(b) stated that he read this officer's name from his nameplate and believed that his name started with the letter G. § 87(2)(b)'s arresting officer was PO Jeffrey Gryz who confirmed his involvement. § 87(2)(g)

Allegations Not Pleaded

§ 87(2)(g)

Investigative Findings and Recommendations

Allegation A: Abuse of Authority – PO Robertito Navarro entered § 87(2)(b)

Brooklyn.

Allegation B: Abuse of Authority – PO Robert Gryz entered § 87(2)(b)

Brooklyn.

§ 87(2)(g), § 87(2)(b)

§ 87(2)(a) 160.50

Hot pursuit does not apply when a suspect retreats into his or her house and the suspected crime is only a violation or a misdemeanor. People v. Cruz, 981 N.Y.S.2d 637(2013) (Encl. 1A-D).

§ 87(2)(g)

Therefore, it is recommended that **Allegations A and B** be closed as **substantiated**.

Allegation C: Force – PO Robertito Navarro used physical force against § 87(2)(b)

In their CCRB testimonies, § 87(2)(b) and § 87(2)(b) both alleged that PO Navarro punched § 87(2)(b) in the stomach immediately after he entered § 87(2)(b)'s apartment. § 87(2)(b) stated that PO Navarro punched § 87(2)(b) three times, while § 87(2)(b) alleged that he was punched once. They both alleged that PO Navarro punched him in the stomach again prior to handcuffing him.

§ 87(2)(b) testified that PO Navarro and PO Gryz handcuffed § 87(2)(b) by grabbing his arms and pushing him to the ground. He did not see either officer punch § 87(2)(b) during the incident, though it is not clear whether he could have observed the final apprehension. § 87(2)(b) did not witness § 87(2)(b)'s arrest.

In his CCRB testimony, PO Navarro stated that § 87(2)(b) resisted arrest by making his arms tense and refusing to be handcuffed. He testified that he and PO Gryz overcame this resistance by grabbing § 87(2)(b)'s arms, pulling them behind his back, and handcuffing him. He stated that neither he nor PO Gryz punched § 87(2)(b) at any time during the incident. PO Gryz's statement matched PO Navarro's testimony and he stated that they

handcuffed § 87(2)(b) by grabbing his arms and pulling them behind his back. PO Gryz did not see PO Navarro punch § 87(2)(b) during the arrest.

§ 87(2)(a) PHL § 18(6)

§ 87(2)(g)

Therefore it is recommended that **Allegation C** be closed as **unsubstantiated**.

Allegation D: Force – PO Jeffrey Gryz used physical force against § 87(2)(b)

§ 87(2)(b) testified that PO Gryz pushed her in the chest after the officers had handcuffed § 87(2)(b) and were leading him out of the apartment. § 87(2)(b) stated that she did not make any attempts to interfere with the arrests and had only asked the officers why they had arrested § 87(2)(b). § 87(2)(b) did not observe PO Gryz push § 87(2)(b) during the incident because he was being led out of the apartment at the time. § 87(2)(b) and § 87(2)(b) both testified that they did not observe either officer make physical contact with § 87(2)(b) at any point during the incident.

In his CCRB testimony, PO Gryz denied pushing or making any other physical contact with § 87(2)(b) during the incident. PO Navarro did not recall whether PO Gryz had any interactions with § 87(2)(b).

§ 87(2)(g)

Therefore, it is recommended that **Allegation D** be closed as **unsubstantiated**.

Allegation E: Force – PO Robertito Navarro used a chokehold against § 87(2)(b)

In his CCRB testimony, § 87(2)(b) alleged that PO Navarro squeezed the front part of his neck for approximately one minute while the officers were trying to place him inside the police vehicle. § 87(2)(b) gagged and PO Navarro removed his hand. § 87(2)(b) was not present for this portion of the incident and did not repeat this allegation in her testimony. While she stated that § 87(2)(b) told her from the car that he was having trouble breathing, § 87(2)(b) did not allege any breathing problems in the car and mentioned only the extreme heat in the car. § 87(2)(b) and § 87(2)(b) both testified that PO Navarro and PO § 87(2)(b) placed § 87(2)(b) inside the police car without using any force or placing him in a chokehold.

PO Navarro and PO Gryz stated that § 87(2)(b) initially attempted to prevent the officers from putting him inside the police car by tensing his body. PO Navarro testified that they verbally convinced him to enter while PO Gryz stated that they pushed him into the RMP. Both denied that PO Navarro placed his hand on § 87(2)(b)'s throat. Neither officer heard § 87(2)(b) complain of any injuries.

§ 87(2)(b), § 87(2)(a) PHL § 18(6)

§ 87(2)(g)

Therefore, it is recommended that **Allegation E** be closed as **unfounded**.

Team: _____

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date